

**CITY OF SAN MATEO
ORDINANCE NO. 2026-08**

**APPROVING A DEVELOPMENT AGREEMENT FOR 445 SOUTH B. STREET, "BESPOKE" MIXED USE DEVELOPMENT
(PA-2023-012)**

WHEREAS, on January 4, 2021, the City Council approved Resolution No. 3 (2021) declaring the City-owned parking lot at East 4th Avenue and South Railroad Avenue as "surplus land" and subsequently released a Notice of Surplus Lands Availability to all housing developers that have registered with the State Department of Housing and Community Development (HCD); and

WHEREAS, on April 19, 2021, the City received four proposals for the acquisition and development of Talbot's Lot, including a proposal from the three-party Development Team composed of Prometheus Real Estate Group, Harvest Properties, and Alta Housing; and

WHEREAS, on October 4, 2021, the City Council approved the City entering into an Exclusive Negotiating Agreement (ENA) for the redevelopment of this City-owned surface parking lot located at 4th and South Railroad Avenues, with amendments to the ENA approving extensions to July 14, 2026; and

WHEREAS, DTSM Talbots Ventures, LLC, (herein referred to as the "Applicant") submitted a planning application (PA-2023-012) on February 24, 2023 associated with the construction of a new mixed-use development totaling 239,628 square feet and consisting of one seven-story affordable housing building approximately 76,072 square feet in area and one six-story building totaling 162,926 square feet of office/commercial area located at 445 South B Street (collectively referred to as "Project") in the City;

WHEREAS, the applicant has requested a Development Agreement with the City (the "Agreement"); and

WHEREAS, the applicant wishes assurance that it may proceed with the Project under the laws, regulations, and policies as specified in the Agreement, in effect on the date of the approval; and

WHEREAS, the state legislature has authorized cities to enter into Development Agreements in order to provide assurance to developers that they may proceed with projects in reliance on existing laws, regulations, and policies; and

WHEREAS, the City, in Resolution No. 120 (1990), has adopted procedures for reviewing and entering into such Development Agreements; and

WHEREAS, the Planning Commission considered the application on April 28, 2026, and recommended adoption of the Mitigated Negative Declaration and Mitigation Monitoring and Reporting Program for the Project (PA-2023-012); and

WHEREAS, the Planning Commission recommended approval of the construction of a new mixed-use development consisting of two new buildings, a subterranean parking garage, landscaping, roadway and other public improvements and common areas, subject to the Findings for Approval and Conditions of Approval; and

WHEREAS, the City Council held a duly noticed public hearing on May 18, 2026, at which time all public comments were considered.

Ordinance No. 2026 - 08

445 S. B Street (Bespoke) – New Mixed-Use Development – Ordinance Adoption

The foregoing Ordinance was adopted by the City Council of the City of San Mateo, State of California by the following vote:

AYES: Council Members Loraine, Fernandez, Cwirko-Godycki, Diaz Nash, and Newsom

NOES: None

ABSENT: None

ATTEST:


Martin McTaggart, City Clerk




Adam Loraine, Mayor

TABLE OF CONTENTS

	<u>Page</u>
<u>ARTICLE I. DEFINITIONS</u>	<u>3</u>
1.1 Definitions.....	3
1.2 Exhibits.	5
<u>ARTICLE II. GENERAL PROVISIONS.....</u>	<u>5</u>
2.1 Parties.....	5
2.2 Recording.	6
2.3 Term.	7
2.4 Force Majeure.	7
<u>ARTICLE III. DEVELOPMENT OF THE PROPERTY</u>	<u>7</u>
3.1 Use of the Property and Applicable Law.	7
3.2 No Conflicting Enactments.....	7
3.3 Reservations of Authority.	8
3.4 Subsequently Enacted Rules and Regulations.	8
3.5 Nexus/Reasonable Relationship Waiver.....	8
3.6 Initiatives and Referenda.	8
3.7 Compliance With Requirements of Other Governmental Entities.	9
3.8 City's Police Power.....	10
3.9 Subsequent Approvals for the Property.	10
3.10 Life of Approvals and City Permits.	11
3.11 Developer Obligations.	11
3.12 City Obligations.	11
<u>ARTICLE IV. COMMUNITY BENEFITS.....</u>	<u>11</u>
<u>ARTICLE V. AMENDMENT OF AGREEMENT AND APPROVALS</u>	<u>12</u>
5.1 Amendment or Cancellation Procedure.	12
5.2 Minor Amendments to Project.....	12
5.3 Requirement for a Writing.	12
5.4 Amendments to Development Agreement Legislation.	13
5.5 Amendment of Development Approvals.	13
5.6 Effect of Termination on Developer's Obligations.	13
<u>ARTICLE VI. ANNUAL REVIEW</u>	<u>14</u>
6.1 Time of Review.....	14
6.2 Compliance Letter.....	14
6.3 Determination of Good Faith Compliance.....	14
6.4 No Waiver.	15

TABLE OF CONTENTS

Page

Exhibits

Exhibit A-1 – Legal Description of the Property

Exhibit A-2 Legal Description of Developer Owned Property

Exhibit A- 3 Legal Description of Developer Leased Property

F. On ____, 20__, City's Planning Commission held a duly noticed public hearing on this Agreement and (i) determined that this Agreement complies in all respects with CEQA, (ii) determined that this Agreement is consistent with the City's General Plan, and (iii) recommended that the City Council approve this Agreement.

G. The following approvals, entitlements, and findings are being concurrently reviewed and approved by the City with respect to the Property, by City Council Resolution No. __, and constitute the "Development Approvals":

- (1) Initial Study/Mitigated Negative Declaration
- (2) Special Use Permit
- (3) Site Plan and Architectural Review (SPAR) ,
- (4) Site Development Planning Application (SDPA)

H. On ____, 20__, the City examined the environmental effects of the Development Approvals in an Initial Study/Mitigated Negative Declaration (State Clearing House #2024100181), prepared pursuant to CEQA (the "IS/MND"). On ____, 20__, the City Council reviewed and certified as adequate and completed the IS/MND by Resolution No. ____ and adopted written findings and approved the MMRP.

I. On ____, 20__, the City Council held a duly noticed public hearing on this Agreement and considered the Planning Commission's recommendations and testimony and information submitted by City staff, Developer, and members of the public, and found this Agreement to be consistent with the City's General Plan and introduced Ordinance No. ____, approving this Agreement.

J. On ____, 20__, the City Council adopted Ordinance No. ____ enacting this Agreement.

K. The City (in its capacity as "lead agency") has approved the entitlement application for the Development (as herein defined) and, in accordance with the California Environmental Quality Act, has adopted a mitigated negative declaration for the Development.

L. The development of the Project may require future discretionary approvals and will require certain ministerial approvals from the City, potentially including, but not limited to, landscaping plans, master sign programs, transportation demand management programs, art permits, tree removal permits, encroachment permits, demolition permits, grading permits, building permits, and certificates of occupancy ("Subsequent Approvals").

M. City, Developer, and Property Owner may each be referred to herein individually as a "Party" or collectively as the "Parties".

1.1.8 “Compliance Letter” shall mean a letter submitted by Developer describing Developer’s compliance with the terms of the Development Approvals and this Agreement.

1.1.9 “City Planning Commission” shall mean the duly appointed and constituted planning commission of the City.

1.1.10 “City Property” has the meaning set forth in Recital C.

1.1.11 “Developer” shall mean DTSM Talbots Venture, LLC, a Delaware limited liability company, and any successor or assignee to all or any portion of its right, title, and/or interest in and to ownership of all or a portion of the Developer Property and/or the Project.

1.1.12 “Developer Property” has the meaning set forth in Recital D.

1.1.13 “Development Agreement Statute” shall mean California Government Code Sections 65864-65869.5, inclusive.

1.1.14 “Director” shall mean the City’s Community Development Director.

1.1.15 “Effective Date” shall mean the date the Authorizing Ordinance becomes effective.

1.1.16 “General Plan” shall mean the City’s 2030 General Plan adopted by the City Council on October 18, 2010.

1.1.17 “Mortgage” shall mean the mortgage, deed of trust, sale and leaseback arrangement, or any other form of conveyance in which the Property, or a part or interest in the Property, is pledged as security and contracted for in good faith and for fair value.

1.1.18 “Mortgagee” shall mean the holder of a beneficial interest under a Mortgage or any successor or assignee of the Mortgagee.

1.1.19 “Project” consists of the construction of two buildings over a shared parking subterranean parking garage—a seven-story residential building that would include approximately 71 affordable units and approximately 5,700 square feet of ground floor commercial space, anticipated to be initially leased to the Center for Self-Help for the Elderly, and the “Commercial Development” consisting of a six-story commercial building that would include approximately 149,000 square feet of office and approximately 14,000 square feet of retail/restaurant space, as further and more specifically described in the Development Approvals.

1.1.20 “Property” is defined in Recital D.

1.1.21 “Residential Development” means the development which will be located on the City Property, consisting of a seven story building with approximately 71 affordable housing units, approximately 5,700 square feet of ground floor commercial space anticipated to be initially leased to the Center for Self-Help for the Elderly, and on-site open space to be developed by the Residential Developer.

(a) Developer represents and warrants that, as of the Effective Date of this Agreement, Developer is:

(i) Duly organized and validly existing under the laws of the State of California;

(ii) Qualified and authorized to do business in the State of California and has duly complied with all requirements pertaining thereto;

(iii) In good standing and has all necessary powers under the laws of the State of California to own property and, in all other respects, enter into and perform the undertakings and obligations of this Agreement.

(b) Developer further represents and warrants:

(i) That no approvals or consents of any persons are necessary for the execution, delivery, or performance of this Agreement by Developer, except as have been obtained;

(ii) That the execution and delivery of this Agreement and the performance of the obligations of Developer have been duly authorized by all necessary actions and approvals required under any management and operating agreement for the corporation constituting Developer; and

(iii) That this Agreement is a valid obligation of Developer enforceable in accordance with its terms.

(c) Property Owner Representations and Warranties.

(i) Is the legal owner of the Developer Lease Property;

(ii) Has entered into a lease agreement with Developer;

(iii) Consents to the terms of this Agreement;

(iv) Consents to the recordation of this Agreement against the title of the Developer Leased Property.

2.1.3 Relationship of City and Developer.

It is understood that this Agreement is a contract that has been negotiated and voluntarily entered into by City and Developer and that the Developer is an independent contractor and not an agent or partner of City.

City and Developer hereby renounce the existence of any form of joint venture or partnership between them and agree that nothing contained in this Agreement or in any document executed in connection with this Agreement shall be construed as making City and Developer joint venturers or partners.

The Property is hereby made subject to the provisions of this Agreement. All development of, or on, the Property, or any portion thereof, shall be undertaken only in compliance with the provisions of this Agreement and with Applicable Law.

3.1.2 Permitted Uses.

The permitted uses of the Property, the density or intensity of use, the maximum height and size of proposed buildings, and provisions for reservation or dedication of land for public purposes shall be governed by Applicable Law.

3.2 No Conflicting Enactments.

Except as and to the extent required by state or federal law, and subject to the provisions of Sections 3.3 and 3.7 below, the City shall not impose on the Property any City Law that has any of the following effects on the rights provided by Applicable Law:

3.2.1 Reduces the maximum amount of development space or residential units if permitted on the Property from that permitted by Applicable Law;

3.2.2 Changes any land use designation or permitted use of the Property from that shown in Applicable Law;

3.2.3 Limits or controls the rate, timing, phasing or sequencing of the approval, development, or construction of all or any part of the Property except as set forth in the Applicable Law;

3.2.4 Limits or restricts any right or use specifically granted by the Development Approvals;

3.2.5 Imposes new requirements for dedication of land or monetary exactions other than as provided in the Development Approvals or pursuant to this Agreement; or

3.2.6 Imposes new impact fees or increases to impact fee by an amount greater than contemplated by a fee escalator existing as of the Effective Date.

3.3 Reservations of Authority.

The development of the Project will require Subsequent Approvals from the City. Notwithstanding any other provision of this Agreement, and notwithstanding the provisions of Section 3.2, at the time Subsequent Approvals are applied for, the following regulations and provisions in place at the time of Subsequent Approval application shall apply to those Subsequent Approvals:

3.3.1 All taxes and assessments imposed by the City which are in force and effect within the jurisdiction of the City for a broadly based class of land, projects, discretionary or ministerial approvals, or taxpayers, as applicable, on which they are imposed.

apply to the Project. Developer agrees and understands that the City does not have authority or jurisdiction over another public agency's authority to grant a moratorium or impose any other limitation that may affect the Project.

3.6.3 The timing, sequencing, and phasing of the development is solely the responsibility of Developer so long as it is consistent with Applicable Law. In particular, the parties desire to avoid the result of *Pardee Construction Co. v. City of Camarillo* (1984) 37 Cal.3d 465, where the failure of the parties therein to consider and expressly provide for the timing of the development resulted in a later adopted initiative restricting the timing of development to prevail over such parties' agreement. The parties therefore acknowledge that Developer shall have the right to develop the Project at such time as Developer deems appropriate so long as such development is consistent with Applicable Law.

3.6.4 The City shall cooperate with Developer and shall undertake such actions as may be necessary to ensure this Agreement remains in full force and effect.

3.7 Compliance With Requirements of Other Governmental Entities.

3.7.1 During the Term, Developer, at no cost to City, shall comply with lawful requirements of, and obtain all permits and approvals required by other local, regional, State and Federal agencies having jurisdiction over Developer's activities in furtherance of this Agreement. Developer shall pay all required fees when due to Federal, State, regional, or other local governmental agencies other than the City and acknowledges that City does not control the amount of any such fees.

3.7.2 City shall cooperate with Developer in Developer's effort to obtain permits and approvals from Federal, State, regional, and other local governmental agencies, provided that same does not impose any costs on or require the City to incur any costs without compensation or reimbursement, or require the City to amend any of the City's policies, regulations, or ordinances.

3.7.3 As provided in California Government Code § 65869.5, this Agreement shall not preclude the application to the Property and Project of changes in laws, regulations, plans, or policies, to the extent that such changes are specifically mandated and required by changes in State or Federal laws or regulations. In the event changes in the law prevent or preclude compliance with one or more provisions of this Agreement, this Agreement shall be modified or suspended as may be necessary to comply with such State or Federal laws or regulations. The parties shall meet and confer in good faith in order to determine whether such provisions of this Agreement shall be modified or suspended as may be necessary to comply with changes in the law, and City and Developer shall agree to such action as may be reasonably required. It is the intent of the parties that any such modification or suspension be limited to that which is necessary and to preserve to the extent possible the original intent of the parties in entering into this Agreement. This Agreement shall remain in full force and effect to the extent it is not inconsistent with such laws or regulations. Nothing in this Agreement shall preclude the City or Developer from contesting by any available means (including administrative or judicial proceedings) the applicability to the Property or Project of any such State or Federal laws or regulations.

Approvals and Subsequent Approvals, shall automatically be extended for the longer of the duration of this Agreement (including any Extensions) or the term otherwise applicable to such Development Approval if this Agreement is no longer in effect.

3.11 Developer Obligations.

In addition to any other obligations of Developer set forth herein, in consideration of City entering into this Agreement, Developer has agreed that if Developer commences development of the Property and proceeds to develop the Property, such development shall be in conformance with all of the terms, covenants, and requirements of this Agreement and Applicable Law, and Developer shall perform those specific obligations identified in the Development Approval. Developer shall pay when due any and all fees, impact fees, and costs which are lawfully imposed on all or any portion of the Property, whether imposed by City or other agencies. As a material inducement to City to enter into this Agreement, Developer further agrees that, as long as this Agreement is in effect:

3.11.1 The provisions of this Agreement shall govern and control the City Law to be applied to this development of the Property over any contrary or inconsistent provisions of the Development Agreement Statute. Developer waives the benefits of any Development Agreement Statute as it may be inconsistent or contrary to the provisions of this Agreement.

3.12 City Obligations.

In addition to any other obligations of City set forth herein, and in consideration of Developer entering into this Agreement, City acknowledges that the primary purpose of this Agreement is to effectuate the terms of the Development Approvals so that the Project is developed.

ARTICLE IV. COMMUNITY BENEFITS

4.1 Developer shall provide the following benefits to the City, which are essential consideration to the City, without which the City would not have entered into this Agreement:

4.1.1 Construction of the parking garage, including 37 dedicated spaces and 25 shared spaces for the affordable housing project. Developer and City will enter into a shared parking agreement whereby Developer will make available to the public [] parking spaces in the underground garage on [dates and times]. This agreement will be entered into by the parties prior to issuance of the first building permit for the underground garage.

4.1.2 Developer Contribution Payment. A payment from the Developer to the City of \$2,900,000 to be made within one hundred twenty (120) days of issuance of Project Development Approvals (the "Developer Contribution").

4.1.3 Residential Developer will offer ground floor space in the affordable housing building at a substantially subsidized rent to Self-Help for the Elderly or other nonprofit entity as reasonably approved by the Director.

To the extent permitted by local, state, and federal law, any Development Approval may, from time to time, be amended or modified by submittal of an application from the Developer and following the procedures for such amendment or modification contained in the San Mateo Municipal Code. Upon any approval of such an amendment or modification, the amendment or modification shall automatically be deemed to be incorporated into the Applicable Law without any further procedure to amend this Agreement.

5.6 Effect of Termination on Developer's Obligations.

5.6.1 Notwithstanding any other provision to the contrary, termination or cancellation of this Agreement or termination of the rights of Developer as to the entire Property, or any part of the Property, shall not affect any requirement to comply with the Development Approvals, the terms and conditions of any other Subsequent Approval, nor any payments then due and owing to City, nor shall it affect the covenants of Developer specified in Section 5.6.2 below, to continue after the termination or cancellation of this Agreement. After termination of this Agreement, Developer shall have no rights to challenge a modification to the Development Approvals by reason of this Agreement other than the rights, if any, Developer would have in the absence of this Agreement.

5.6.2 Notwithstanding anything in this Agreement to the contrary, the following provisions of this Agreement shall survive and remain in effect following termination or cancellation of this Agreement for so long as necessary to give them full force and effect with respect to claims or rights of City arising prior to termination or cancellation:

- (a) Section 5.6 (Developer's obligations upon termination or cancellation);
- (b) Section 7.2 (Remedies; limitation on damages); and
- (c) Section 11.2 (Indemnification).

ARTICLE VI.
ANNUAL REVIEW

6.1 Time of Review.

City and Developer shall review all actions taken pursuant to the terms of this Agreement once annually, within sixty (60) days prior to each anniversary of the Effective Date, during each year of the Term unless the City and Developer agree in writing to conduct the review at another time. Review of compliance with the terms of this Agreement shall be conducted by the Planning Commission. Pursuant to San Mateo Municipal Code Section 27.60.120 and Resolution No. 120 (1999), Developer shall initiate the review by filing an application with the City and provide all the documents and information necessary for the City to complete the annual review and make a determination of whether Developer is in compliance.

6.2 Compliance Letter.

Before each anniversary of the Effective Date, Developer shall submit a letter ("Compliance Letter"), along with all necessary supporting documentation, to the Director

hereunder and thereafter diligently completes performance. Written notice hereunder shall specify in detail the nature of the obligation to be performed by the party receiving notice.

7.2 Remedies for Breach.

It is acknowledged by the parties that neither City nor Developer would have entered into this Agreement if it were to be liable for damages under, or with respect to, this Agreement or the application thereof. The City shall not be liable in damages to Developer, or to any assignee, transferee or any other person, and Developer covenants not to sue for or claim damages, while reserving the right to initiate legal proceedings to specifically enforce or terminate this Agreement. Developer shall not be liable in damages to the City, or to any assignee, transferee or any other person, and City covenants not to sue for claims for damages. Upon Developer's material default pursuant to Article VII hereof, City shall be entitled to initiate legal proceedings to specifically enforce or terminate this Agreement or the City may terminate this Agreement pursuant to Article VI. Nothing in this Section 7.2 is intended to limit the remedies available to the City or Developer under the Disposition and Development Agreement.

7.3 Termination by Mutual Consent.

This Agreement may be voluntarily terminated in whole or in part by the mutual consent of the parties or their successors in interest, in the sole and absolute discretion of each as to its consent.

ARTICLE VIII. ESTOPPEL CERTIFICATE

Either party may, at any time, and from time to time, deliver written notice to the other party requesting such party to certify in writing that, to the knowledge of the certifying party, (a) this Agreement is in full force and effect and is a binding obligation of the parties, (b) this Agreement has not been amended or modified or, if so amended or modified, identifying the amendments or modifications, and (iii) the requesting party is not in default in the performance of its obligations under this Agreement, or if in default, to describe the nature of any defaults. The party receiving a request under this Article VIII shall execute and return the certificate within thirty (30) days following receipt of the request. The Director shall be authorized to execute any certificate requested by Developer. Developer and City acknowledge that a certificate hereunder may be relied upon by transferees and Mortgagees. Developer shall pay the City's reasonable costs involved in providing such estoppel certificate.

ARTICLE IX. TRANSFERS, ASSIGNMENTS

9.1 Agreement Runs With the Land.

9.1.1 This Agreement and all of its provisions, agreements, rights, powers, standards, terms, covenants and obligations, shall be binding upon the parties and their respective heirs, successors (by merger, consolidation, or otherwise) and assigns, devisees, administrators, representatives, lessees, and all other persons or entities acquiring the Property or any portion thereof, or any interest therein, whether by sale, operation of law, or in any manner whatsoever,

deed of trust or mortgage ("Mortgage"). Notwithstanding the foregoing, no breach of this Agreement shall defeat, render invalid, diminish, or impair the lien of any Mortgage made in good faith and for value, but all of the terms and conditions contained in this Agreement (including but not limited to City's remedies to terminate the rights of Developer (and its successors and assigns) under this Agreement, to terminate this Agreement, and to seek other relief as provided in this Agreement) shall be binding upon and effective against any person or entity, including any deed of trust beneficiary or mortgagee ("Mortgagee") who acquires title to the Property, or any portion thereof, by foreclosure, trustee's sale, deed in lieu of foreclosure, or otherwise.

10.2 Mortgagee Not Obligated.

Notwithstanding the provisions of Section 10.1 above, no Mortgagee shall have any obligation or duty under this Agreement to construct or complete the construction of improvements on the Property, or to guarantee such construction or completion; provided, however, that a Mortgagee shall not be entitled to devote the Property to any uses or to construct any improvements on the Property other than those uses or improvements provided for or authorized by this Agreement, or otherwise under Applicable Law. City, upon receipt of a written request from a Mortgagee, shall permit the Mortgagee to succeed to the rights and obligations of Developer under this Agreement, provided that all defaults by Developer hereunder that are reasonably susceptible of being cured are cured by the Mortgagee as soon as is reasonably possible after the Mortgagee takes possession of the Property.

10.3 Notice of Default to Mortgagee.

If City receives a written notice from a Mortgagee, Developer, or any approved Assignee requesting a copy of any notice of default given Developer or any approved Assignee and specifying the address for service, then City shall deliver to the Mortgagee at Mortgagee's cost (or Developer's cost), concurrently with service to Developer, any notice given to Developer with respect to any claim by City the Developer is in default under this Agreement, and if City makes a determination of default, City shall if so requested by the Mortgagee likewise serve at Mortgagee's cost (or Developer's cost) notice of noncompliance on the Mortgagee concurrently with service on Developer. Each Mortgagee shall have the right during the same period available to Developer to cure or remedy, or to commence to cure or remedy, the event of default claimed or the areas of noncompliance set forth in City's notice.

10.4 No Supersedure.

Nothing in this Article X shall be deemed to supersede or release a Mortgagee or modify a Mortgagee's obligations under any subdivision improvement agreement or other obligation incurred with respect to the Property outside this Agreement, nor shall any provision of this Article X constitute an obligation of City to the Mortgagee, except as to the notice requirements of Section 10.3.

ARTICLE XI. INDEMNIFICATION

11.1 No Duty of City; Hold Harmless.

ARTICLE XII.
NOTICES

12.1 Notices.

Formal written notices, demands, correspondence and communications between City and Developer shall be sufficiently given if: (a) personally delivered; or (b) dispatched by next day delivery by a reputable carrier such as Federal Express or DHL to the offices of City and Developer indicated below, provided that a receipt for delivery is provided; or (c) if dispatched by certified mail, postage prepaid, to the offices of City and Developer indicated below. Such written notices, demands, correspondence, and communications may be sent in the same manner to such persons and addresses as either party may from time-to-time designate by notice as provided in this Section. A copy of the notice should be sent via e-mail as well to the email addresses provided in this Section.

CITY: City Manager
City of San Mateo
330 West 20th Avenue
San Mateo, CA 94403
email:

With copy to: City Attorney
City of San Mateo
330 West 20th Avenue
San Mateo, CA 94403
email:

DEVELOPER:

DTSM Talbots Venture, LLC
c/o Harvest Properties
180 Grand Avenue, Suite 1400
Oakland, CA 94612
Attn: Preston O'Connell

With a copy to:

Prometheus Real Estate Group, Inc.
1 N. B Street, Suite 4000
San Mateo, California 94401
Attn: _____

PROPERTY OWNER:

Moore Talbot Partners, LP,
2628 Sunset Terrace

Developer covenants by and for itself and any successors in interest that there shall be no discrimination against or segregation of any person or group of persons on account of race, color, creed, religion, sex, marital status, ancestry, or national origin in the development of the Property in furtherance of this Agreement. The foregoing covenant shall run with the land.

13.7 Headings.

The language in this Agreement in all cases shall be construed as a whole and in accordance with its fair meaning. Section and subsection headings in this Agreement are for convenience only and are not intended to be used in interpreting or construing the terms, covenants, or conditions of this Agreement.

13.8 Agreement is Entire Understanding.

This Agreement is executed in one original, which constitutes the entire understanding and agreement of the parties. The parties acknowledge and agree that neither of them has made any representation with respect to the subject matter of this Agreement or any representations inducing the execution and delivery hereof, except representations set forth herein, and each party acknowledges that it has relied on its own judgment in entering this Agreement. The parties further acknowledge that, except for those contained in Applicable Law, all statements or representations that heretofore may have been made by either of them to the other are void and of no effect, and that neither of them has relied thereon in its dealings with the other. To the extent that there is any conflict between the Applicable Law and this Agreement, this Agreement shall govern the parties' respective rights and obligations.

13.9 Interpretation.

Each party to this Agreement has had an opportunity to review the Agreement, confer with legal counsel regarding the meaning of the Agreement, and negotiate revisions to the Agreement. Accordingly, neither party shall rely upon Civil Code Section 1654 in order to interpret any uncertainty in the meaning of the Agreement.

13.10 Recordation of Termination.

Upon completion of performance of the parties or termination of this Agreement, a written statement acknowledging such completion or termination shall be recorded by City in the Official Records of San Mateo County, California.

Signatures on the Following Page

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

STATE OF CALIFORNIA)
)
COUNTY OF _____)

On _____, before me, _____, Notary Public,
personally appeared _____, who proved to me on the
basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within
instrument and acknowledged to me that he/she/they executed the same in his/her/their
authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or
the entity upon behalf of which the person(s) acted, executed the instrument.

I certify UNDER PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Name: _____
Notary Public

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

STATE OF CALIFORNIA)
)
COUNTY OF _____)

On _____, before me, _____, Notary Public,
personally appeared _____, who proved to me on the
basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within
instrument and acknowledged to me that he/she/they executed the same in his/her/their
authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or
the entity upon behalf of which the person(s) acted, executed the instrument.

I certify UNDER PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Name: _____
Notary Public

Exhibit A-2

Developer Owned Property

The Land referred to herein below is situated in the City of San Mateo, County of San Mateo, State of California, and is described as follows:

LOT 5, BLOCK 10, AS DESIGNATED ON THE MAP ENTITLED, "MAP OF THE TOWN OF SAN MATEO, SAN MATEO COUNTY, CALIFORNIA", FILED IN THE OFFICE OF THE RECORDER OF THE COUNTY OF SAN MATEO, STATE OF CALIFORNIA ON JANUARY 24, 1963 IN BOOK 2 OF MISCELLANEOUS RECORDS, AT PAGE 95, AND A COPY ENTERED IN BOOK 1 OF MAPS AT PAGE 45.

For conveyancing purposes only: APN 034-179-010

Real property in the City of San Mateo, County of San Mateo, State of California, described as follows:

LOT 6, BLOCK 10, AS DESIGNATED ON THE MAP ENTITLED, "MAP OF THE TOWN OF SAN MATEO, SAN MATEO COUNTY, CAL.", WHICH MAP WAS FILED IN THE OFFICE OF THE RECORDER OF THE COUNTY OF SAN MATEO, STATE OF CALIFORNIA ON JANUARY 24, 1863 IN BOOK 2 OF MISCELLANEOUS RECORDS AT PAGE 95 AND A COPY ENTERED IN BOOK 1 OF MAPS AT PAGE 45.

APN: 034-179-020

